

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- X
DANIEL JACKE, CORNELL JACKE, CHEVIN JACKE,
HANNAH COOKSON, GEORGETTE JACKE

Plaintiffs,

-against-

**FIRST AMENDED
COMPLAINT AND
JURY DEMAND**

THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND KELLY, POLICE OFFICER JENNIFER
LAVELLE, POLICE OFFICER JEFFREY LEHN,
POLICE OFFICER DAVID PRALGO, POLICE
OFFICER PETER McIVOR, SGT. RSHAWN JENKINS,
SGT. LARRY FLUNORY, SERGEANT DOMENICO
COLAVITO, LT. PETER CARRETTA, POLICE
OFFICER JANET CATANIA, POLICE OFFICER
RICARDO RAMIREZ, POLICE OFFICER KYLE
STANLEY, SGT. ISAAC ACEVEDO,

DOCKET #09-CV-830
(ENV)(RML)

ECF CASE

Defendants.
----- X

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiffs seek relief for the violation of their rights secured by 42 U.S.C. §1983 and the Fourth and Fourteenth Amendments to the United States Constitution, and the laws and Constitution of the State of New York.

2. The claims arise from a December 8, 2007 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiffs to, among other things, assault, battery, false arrest, and malicious prosecution.

3. Plaintiffs seek monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action is brought pursuant to 28 U.S.C. §1331, 42 U.S.C. §1983, and the Fourth and Fourteenth Amendments to the United States Constitution. Pendent party jurisdiction and supplementary jurisdiction over plaintiffs' state law claims are asserted.

5. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

6. Venue is laid within the United States District Court for the Eastern District of New York in that Defendant City of New York is located within, and the events occurred within, the boundaries of the Eastern District of New York.

PARTIES

7. Hannah Cookson is a citizen of the United States and at all times here relevant resided in England. Chevin Jacke, Cornell Jacke, and Georgette Jacke are legal residents of the United States; at all times here relevant, Chevin Jacke and Cornell Jacke resided in Kings County, New York, and Georgette Jacke resided in Middletown, New York.

8. The City of New York is a municipal corporation organized under the laws of the State of New York.

9. New York Police Commissioner Raymond Kelly ("Kelly") was at all times here relevant the Commissioner of the New York City Police Department, and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers, including the other individual defendants. Kelly is sued in his individual and official capacities.

10. All others individual defendants ("the officers") are employees of the NYPD, and are sued in their individual capacities.

11. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and

State of New York.

NOTICE OF CLAIM

12. Within 90 days of the events giving rise to this claim, plaintiffs filed written notice of claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of that notice, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

13. On November 29, 2007, defendants Sergeant Flunory ("Flunory"), Police Officer Pralgo ("Pralgo"), and Police Officer Peter McIvor ("McIvor") issued a summons to Chevin Jacke ("Chevin") for posting a flyer publicizing a party he was holding the following week. During that interaction, the three officers threatened to come and break up the party.

14. On December 8, at approximately 3:40 AM, in Kings County New York, the officers made good on their promise. While plaintiffs were lawfully gathered inside a private location, the officers entered. Although music was playing, it was not loud enough to disturb anyone. No drugs were being used. No one was charging money to enter the party. Nevertheless, officers entered the party, and demanded to know whose party it was. They then randomly began pulling individuals out of the party to issue them meritless and unwarranted summonses. As they approached Daniel Jacke ("Daniel"), he backed up with his hands up and open, and protested. At that point, Georgette Jacke ("Georgette") tried to placate the situation, but was pushed by one of the officers into the wall, and Sgt. Colavito began hitting Daniel repeatedly over the head with a flashlight. When Hannah Cookson ("Cookson") attempted to stop the assault, she, too, was hit with the flashlight, and thrown to the ground by one of the officers.

15. Plaintiffs were taken outside by the officers. There, Daniel, Chevin, and Cornell Jacke ("Cornell") were falsely arrested. Police Officer Jennifer Lavelle issued a false summons for

“open container” to Cornell Jacke, under summons #4310962415, which was dismissed with prejudice on March 8, 2008. Chevin ultimately was falsely charged by Officer Lehn with disorderly conduct; Daniel ultimately was charged with disorderly conduct and resisting arrest. Daniel and Chevin’s charges were adjourned in contemplation of dismissal, and subsequently dismissed. Sgt. Flunory was present and supervised and approved the arrests.

16. At all times during the events described above, the defendant police officers were engaged in a joint venture and formed an agreement to violate plaintiff’s rights. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against plaintiff, and agreed, shortly after the incident, not to report each others’ illegal actions and to fabricate a story and falsely charge Daniel, Chevin and Cornell with offenses, to justify the injuries.

17. During all of the events above described, defendants acted maliciously and with intent to injure plaintiff.

DAMAGES

18. As a direct and proximate result of the acts of defendants, plaintiffs suffered the following injuries and damages:

- a. As to Chevin, Daniel and Cornell: Violation of their rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure;
- b. As to Chevin, Daniel and Cornell: Violation of their right to Due Process of Law under the Fourteenth Amendment to the United States Constitution;
- c. As to Chevin, Daniel and Cornell: Violation of their New York State

Constitutional rights under Article 1, Section 12 to be free from an unreasonable search and seizure;

d. As to Chevin, Daniel and Cornell: Violation of their New York State Constitutional right under Article 1, Section 6 to Due Process of Law;

e. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety;

f. Loss of liberty;

g. Physical pain and suffering;

h. Lost wages and attorney's fees;

FIRST CAUSE OF ACTION- AS TO PLAINTIFFS DANIEL JACKE, CHEVIN JACKE, AND CORNELL JACKE

(42 U.S.C. § 1983)

19. The above paragraphs are here incorporated by reference.

20. Defendants acted under color of law and conspired to deprive plaintiffs of their civil, constitutional and statutory rights to be free from unreasonable search and seizure and to due process of law pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, and are liable to plaintiff under 42 U.S.C. §1983.

21. Defendants falsely arrested plaintiffs, used excessive force against plaintiffs, and failed to intervene in each other's obviously illegal actions.

22. Plaintiff has been damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION- AS TO PLAINTIFFS DANIEL JACKE, CHEVIN JACK, AND CORNELL JACKE

(MUNICIPAL AND SUPERVISORY LIABILITY)

23. The above paragraphs are here incorporated by reference.

24. The City and Kelly are liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees' violation of plaintiffs' constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event. Kelly has been personally involved in crafting and maintaining the aforementioned policies and customs.

25. The City and Kelly have been alerted to the regular use of excessive force and false arrests by its police officers, but have nevertheless exhibited deliberate indifference to such excessive force and false arrests; that deliberate indifference caused the violation of plaintiffs' constitutional rights in this case.

26. The aforesaid event was not an isolated incident. The City and Kelly have been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers use excessive force, unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City and Kelly have allowed policies and practices that allow the aforementioned to persist.

27. For example, the well documented failures of the Civilian Complaint Review Board ("the CCRB"), a City agency, to substantiate obviously meritorious citizen complaints have gone uncorrected. The CCRB regularly finds complainants lack credibility based on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice

that often results in not substantiating the most serious charges brought to them. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.

28. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and underutilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which Kelly has done on many occasions.

29. Further, the City and Kelly have no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected. Additionally, according to a report of the New York City Bar Association issued in 2000, the City and Kelly have isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have no impact on the officers' careers, regardless of the outcome of the civil actions. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a "a total disconnect" between the settlements of even substantial civil claims and police department action against officers.

30. The City and Kelly are aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City and Kelly have failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiffs' civil rights, without fear of reprisal. Furthermore, although the City has been on notice, through plaintiffs' complaints to the CCRB from the first day of the incidents complained of, the City has failed to remedy the wrong.

31. Plaintiff has been damaged as a result of the deliberate indifference of the City and Kelly to the constitutional rights of the City's inhabitants.

THIRD CAUSE OF ACTION
(ASSAULT)

32. The above paragraphs are here incorporated by reference.

33. Defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

34. Plaintiffs were damaged by defendants' assault.

FOURTH CAUSE OF ACTION
(BATTERY)

35. The above paragraphs are here incorporated by reference.

36. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching and battered them.

37. Plaintiffs were damaged by defendants' battery.

FIFTH CAUSE OF ACTION
(FALSE ARREST AND ILLEGAL IMPRISONMENT- AS TO DANIEL JACKE, CHEVIN JACKE, AND CORNELL JACKE)

38. The above paragraphs are here incorporated by reference.

39. Defendants subjected plaintiffs to false arrest, false imprisonment, and deprivation of

liberty without probable cause.

40. Defendants intended to confine plaintiffs.

41. Plaintiffs were conscious of the confinement and did not consent to it.

42. As a result of the false arrest, imprisonment, and deprivation of liberty, plaintiffs were damaged.

SIXTH CAUSE OF ACTION
(CONSTITUTIONAL TORT)

43. All preceding paragraphs are here incorporated by reference.

44. Defendants, acting under color of law, violated plaintiffs' rights pursuant to §§6 and 12 of the New York State Constitution.

45. A damages remedy here is necessary to effectuate the purposes of §§6 and 12 of the New York State Constitution, and appropriate to ensure full realization of plaintiffs' rights under those sections.

SEVENTH CAUSE OF ACTION
(RESPONDEAT SUPERIOR)

46. The preceding paragraphs are here incorporated by reference.

47. Defendants' intentional tortious acts were undertaken within the scope of their employment by defendant City of New York and in furtherance of the defendant City of New York's interest.

48. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of defendant City of New York, plaintiffs were damaged.

EIGHTH CAUSE OF ACTION
(NEGLIGENT HIRING AND RETENTION)

49. The above paragraphs are here incorporated by reference.

50. Defendant officers had a bad disposition and the City knew or should have known of

facts that would have led reasonable and prudent people to further investigate the defendant officers' bad dispositions through the hiring and retention process.

51. Defendants knew or should have known that their failure to investigate defendant officers' bad dispositions would lead to plaintiffs' injuries.

52. Defendants were negligent in their hiring and retaining the officers involved in this case in that they knew or should have known of the officers' propensity to use excessive force and to make false arrests.

53. The injuries to plaintiffs were caused by the officers' foreseeable use of excessive force.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, as follows:

- A. In favor of plaintiffs in an amount to be determined by a jury for each of plaintiff's causes of action;
- B. Awarding plaintiffs punitive damages in an amount to be determined by a jury;
- C. Awarding plaintiffs reasonable attorneys' fees, costs and disbursements of this action; and
- D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiffs demand a trial by jury.

DATED: Brooklyn, New York
November 13, 2009

TO: New York City
Corporation Counsel Office
100 Church Street, 4th floor
New York, NY 10007

Police Commissioner Raymond W. Kelly
1 Police Plaza
Room 1406
New York, NY 10006

Police Officer Jeffrey Lehn
75th Precinct
1000 Sutter Avenue
Brooklyn NY 11208

Police Officer Pralgo
75th Precinct
1000 Sutter Avenue
Brooklyn NY 11208

Police Officer Jennifer Lavelle
Brooklyn Bureau Narcotic North
One Police Plaza, Rm 1100
New York, NY

Sergeant Flunory
Conditions Sergeant, 75th Precinct
1000 Sutter Avenue
Brooklyn NY 11208

Sergeant Rshawn Jenkins
75th Precinct
1000 Sutter Avenue
Brooklyn NY 11208

Police Officer Ricardo Ramirez, Shield #19461
75th Precinct
1000 Sutter Avenue
Brooklyn NY 11208

Very truly yours,



Stoll, Glickman & Bellina, LLP
By: Andrew B. Stoll (AS8808)
Attorney for Plaintiff
71 Nevins Street
Brooklyn, NY 11217
(718) 852-3710
astoll@stollglickman.com

Sgt. Domenico Colavito, Shield # 00355
75th Precinct
1000 Sutter Avenue
Brooklyn NY 11208

Police Officer Kyle Stanley, Shield #3809
75th Precinct
1000 Sutter Avenue
Brooklyn NY 11208

Lt. Peter Carretta, Tax ID 917387
Brooklyn South Gang Unit
140 58th Street, Suite 6B
Brooklyn NY 11220

Police Officer Brian McIvor, Shield #8466
75th Precinct
1000 Sutter Avenue
Brooklyn NY 11208

Police Officer Janet Catania, Shield #1697
75th Precinct
1000 Sutter Avenue
Brooklyn NY 11208

Sgt. Isaac Acevedo, Shield #223
PSA 4
130 Avenue C
New York NY 10002